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601 E 54th St, New York, NY 10022

DOCUMENT: Calder Warn Analysis

MEMORANDUM / FILE REPORT

TO: Alex Williams, Senior Partner

FROM: Rachel Zane, Associate

DATE: May 03, 2026

SUBJECT: Calder Warn Analysis - Darby International v. Avery McKernon

As requested, I have reviewed the latest filings regarding the Darby International matter.

The plaintiff's claims are entirely without merit and constitute a frivolous abuse of the judicial process.

Any attempt at a hostile takeover will be met with a poison pill strategy.

Next Steps:

1. Schedule a deposition with Avery McKernon.
2. File the injunction by 5:00 PM tomorrow.
3. Have Donna Paulsen organize the discovery boxes.

Respectfully submitted,

Rachel Zane